

16. 9:01 AM CASE NUMBER: C25-01305
CASE NAME:INDERJEET KAUR VS. VOLKSWAGEN GROUP OF AMERICA, INC.,
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1
FILED BY: KAUR,INDERJEET
TENTATIVE RULING:

Plaintiff Inderjeet Kaur ("Plaintiff") filed a Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, February 25, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing initially on August 3, 2026. The motion is opposed.

Disposition

In the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the Court, *sua sponte*, orders as follows:

1. The Motion to Compel Further Responses is **CONTINUED** to **September 24, 2026, 9:00 am**, in **Department 20 (Judge Melissa O'Connell)**.
2. **Further Court Ordered Meet and Confer.** The parties are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue **within thirty (30) days** of the date of this order. **Such further meet and shall be done through direct talks (in person or via video conference) and address each disputed discovery item by time.**
3. **Compliance Statement.** For the parties' consideration, among other things, in connection with the further meet and confer, the Court notes that it is concerned about the responding party's use of the phrase "will allow this request" in its responses. Such phraseology does not appear to be code compliant. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469. A compliance statement must indicate that the party "will comply" with the particular demand and make the other statements required by Code of Civil Procedure section 2031.220. See Code Civ. Proc. § 2031.220.
4. **Further Joint Filing.** If not resolved through such further talks, the parties are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **September 10, 2026**, the parties shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing ONLY the most recent and operative response at issue if a supplemental or amended response has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the

propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and responses in Column Nos. 1 and 2).**

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Discovery Motions.
 - e. **Courtesy Hard Copy for Department.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 20 not less than one week in advance of the hearing date on the Discovery Motions.
5. The Court shall issue the order after hearing.
6. **NOTICE REGARDING COMPLIANCE WITH ORDERS:** All parties and their counsel, if any, are hereby admonished that a failure to comply with the current orders, including, but not limited to, the orders made herein, and/or conduct which frustrates or obstructs such orders may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys' fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5.

17. 9:01 AM CASE NUMBER: C25-02870
CASE NAME: JANE DOE M.M. VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING COMPLIANCE WITH PLTFS DEPO**
SUBPOENA FOR PROD OF BUSINESS RECORDS
FILED BY: JANE DOE M.M.
TENTATIVE RULING:

Plaintiff Jane Doe M.M. ("Plaintiff") filed a motion to compel compliance with deposition subpoena for production of business records on February 27, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks an order compelling non-party Clayton Police Department/The City of Clayton (the "City") to produce business records subject to subpoena. The Motion to Compel was set for hearing on August 3, 2026. The motion is opposed.

Background

Plaintiff issued a subpoena to The City on December 17, 2025 seeking the following records: